
This act summary is provided for the convenience of the public and members of the General Assembly. It is intended to provide a general summary of the act and may not be exhaustive. It has been prepared by the staff of the Office of Legislative Counsel without input from members of the General Assembly. It is not intended to aid in the interpretation of legislation or to serve as a source of legislative intent.

Act No. 165 (H.937). An act relating to miscellaneous judiciary procedures

Subjects: Criminal procedure; court procedure; miscellaneous amendments

This act makes a number of changes to court and Judiciary procedures, including permitting the Attorney General and crime victims to prevent an offender from profiting from the offender's criminal conduct; making a technical amendment to the underage alcohol and cannabis statute to provide automatic license reinstatement after a temporary suspension for failure to complete the Youth Substance Awareness Safety Program; permitting public access to criminal case records subject to rules promulgated by the Judiciary; establishing procedures for renewal of a judgment for money or property in the Family Division; amending the stalking laws to clarify that the acts required to establish a course of conduct may occur on the same day; conforming statutes to reflect current practice regarding notification of crime victims regarding the offender's location and permitting crime victims to opt out of notifications from the Department of Corrections; substituting "health care provider" for "physician" for one of the designated positions on the Victims Compensation Board; amending the law regarding the length of time for keeping confidential pretrial risk assessments and needs screenings from three years to two years to conform to the general State policy of two years minimum; repealing the statutes related to "spendthrift guardianships"; making conforming changes to computation of court deadlines; removing the requirement that a certified copy of a child custody determination be mailed to the court administrator because such determinations are direct filed; providing that certain deeds establish joint tenancy and not tenancy in common; increasing the valuation of lost property that requires posting by the person who found the property from \$3.00 to \$50.00; establishing procedures and protocols for rapid accountability dockets; amending the home and land improvement fraud statute to conform to recent court decisions; clarifying that the liability caps applicable to federal Section 1983 actions under existing law in the Vermont Tort Claims Act also apply to the new state cause of action created in 2026 Acts and Resolves No. 87, which is modeled after 42 U.S.C. § 1983; updating language to reflect the delayed start of the Tenant Representation Pilot Program and expanding the Pilot Program statewide; authorizing the Human Rights Commission (HRC) to disclose investigative reports resulting from a complaint initiated by an HRC employee; permitting the court to issue a domestic relief from abuse order if the defendant is under the supervision of the Department of Corrections for certain violent crimes, not just if the defendant is incarcerated; and making various technical and conforming changes to statutes involving court process.

Multiple effective dates, beginning on June 18, 2026